

Business Ventures and Member Loans Code, 2026

Member loans, member business support, and the governance of First Nation businesses

Draft for adoption by Council and ratification by the Electors | September 30, 2026

Status	Draft for adoption by Council Resolution and ratification by the Electors in a Ratification Vote.
Works with	Financial Administration Code (Document 09), Part 9 and section 13.1. Spending and Contracts Code (Document 10).
Appeals	To the Appeals Panel under the Appeals and Complaints Code (Document 16).
Legal review	To be reviewed by legal counsel before adoption, including for corporate law that applies to each First Nation Business Entity.

Contents

Part 1 Interpretation	2
Part 2 Three Separate Accounts	3
Part 3 Member Loans	4
Part 4 Member Business Support	6
Part 5 Nation Ventures	7
Part 6 Appeals	8
Part 7 Amendment and Coming into Force	9
Explanatory Notes	10

BUSINESS VENTURES AND MEMBER LOANS CODE OF THE FORT McMURRAY No. 468 FIRST NATION, 2026

WHEREAS the First Nation lends money to Members, supports businesses owned by Members, and owns or controls businesses of its own; and

WHEREAS each of these uses different money for a different purpose, and they shall be kept separate, decided under written rules, and reported to Members; and

WHEREAS a loan that may be forgiven by Council alone is not a loan, and a business owned by the First Nation shall be run for the benefit of all Members and not for those who hold office;

NOW THEREFORE the Council of the Fort McMurray No. 468 First Nation adopts this Code, subject to ratification by the Electors:

Part 1 **Interpretation**

1 Citation

- 1.1 This Code may be cited as the *Business Ventures and Member Loans Code of the Fort McMurray No. 468 First Nation, 2026*.

2 Definitions

- 2.1 In this Code:
- (a) "Business Support" means a non-repayable contribution under Part 4 to a Member-Owned Business;
 - (b) "Business Support Panel" means the panel established under section 12;
 - (c) "Member Loan" means a repayable loan to a Member under Part 3;
 - (d) "Member-Owned Business" has the meaning given in the Spending and Contracts Code;
 - (e) "Nation Venture" means a First Nation Business Entity, or a business carried on directly by the First Nation;
 - (f) "Program Payment" means a payment to a Member under a program of the First Nation, other than a Treaty Payment; and
 - (g) "Treaty Payment" means a payment to a Member under Treaty No. 8, including the annual annuity.
- 2.2 A term used in this Code that is not defined in section 2.1 has the meaning given in the Governance Constitution or, until it is in force, in the Customary Election Regulations or the Financial Administration Code.

Part 2

Three Separate Accounts

3 Separation

3.1 The money used under this Code is held in three (3) separate accounts:

Account	What it is	Limit
Member Loan Fund	Personal loans to Members that must be repaid	Five thousand dollars (\$5,000.00) outstanding for each Member
Member Business Support Fund	Contributions to Member-Owned Businesses that are not repaid	Ten thousand dollars (\$10,000.00) for each Member in a fiscal year
Nation Ventures	Businesses owned or controlled by the First Nation	Each Nation Venture keeps its own books and bank accounts

3.2 The total amount available in the Member Loan Fund and the Member Business Support Fund each year is set in the Approved Budget.

3.3 Money shall not be moved between the accounts, or from other funds of the First Nation into them, except by a budget Resolution under the Financial Administration Code and the Spending and Contracts Code. Mixing the accounts is a breach of this Code.

3.4 If the accounts are not separate, no new Member Loan, Business Support, or payment to a Nation Venture may be made until they are separated.

Part 3

Member Loans

4 Eligibility

- 4.1 A Member who is at least eighteen (18) years of age may apply for a Member Loan.
- 4.2 A Member may hold only one (1) Member Loan at a time, and the balance outstanding shall not exceed the limit in section 3.1.
- 4.3 No Member Loan shall be made to a member of Council, as the Conduct and Conflict of Interest Code provides.

5 Loan Agreement

- 5.1 Every Member Loan shall be made under a written loan agreement signed by the Member and by the Finance Officer, stating the amount, the interest rate, the monthly payment, the term, and whether section 7.3 applies.
- 5.2 The interest rate is two percent (2%) a year, unless the Approved Budget sets another rate for all Member Loans made in that year.
- 5.3 The term shall not exceed twenty-four (24) months.
- 5.4 No Member Loan may be made orally. A payment made as a loan without a signed loan agreement is an unauthorized payment under the Spending and Contracts Code.

6 Decisions

- 6.1 The Finance Officer shall decide each complete application in writing within thirty (30) days.
- 6.2 An application shall be approved if the Member is eligible under section 4, funds are available in the Member Loan Fund, the Member has no previous Member Loan more than sixty (60) days in arrears, and the monthly payment is reasonable having regard to the income the Member reports.
- 6.3 Where funds are not available for every eligible application, applications shall be approved in the order they became complete.
- 6.4 An application by an employee who administers Member Loans, or by Immediate Family of the Finance Officer, shall be decided by a person assigned by the Band Manager who is not related to the Applicant.
- 6.5 No member of Council shall decide, approve, refuse, or attempt to influence an application. A decision made by a member of Council is void.

7 Repayment and Arrears

- 7.1 Where a payment is missed, the Finance Officer shall send written notice to the Member within fourteen (14) days.
- 7.2 A Member whose loan is more than sixty (60) days in arrears may not receive a new Member Loan until the arrears are paid.
- 7.3 An amount owing on a Member Loan may be deducted from a Program Payment only if the loan agreement provides for it, and no deduction may exceed twenty-five percent (25%) of any one Program Payment.
- 7.4 No amount owing on a Member Loan shall be deducted from a Treaty Payment. An employee who makes such a deduction shall reverse it within seven (7) days, and shall not administer Member Loans for one (1) year.
- 7.5 The Finance Officer may defer payments for up to six (6) months, under published hardship criteria, on the written request of the Member. A deferral is not a forgiveness.

8 Forgiveness

- 8.1 Council shall not forgive a Member Loan, in whole or in part. A Member Loan may be forgiven only with the approval of the Electors in a Ratification Vote under section 13.1 of the Financial Administration Code, held on at least twenty-one (21) days' notice.
- 8.2 A Resolution that purports to forgive a Member Loan is void, and the Finance Officer shall restore the amount to the books within seven (7) days.
- 8.3 Section 8.1 does not prevent the writing off of an amount that the Finance and Audit Committee certifies in writing as uncollectible. A write-off does not release the Member from the debt.

9 Reporting

- 9.1 Each quarter, the Finance Officer shall publish the number of Member Loans made, the total amount lent, the total outstanding, the number and total of loans more than sixty (60) days in arrears, and the amounts written off, without names.

Part 4

Member Business Support

10 Eligibility and Application

- 10.1 A Member who owns a Member-Owned Business, or who is starting one, may apply for Business Support up to the limit in section 3.1.
- 10.2 The application shall include a short plan stating what the business does or will do, what the Business Support will buy, and how the purchase will be recorded.
- 10.3 No Business Support shall be given to a business in which a member of Council, a member of the Business Support Panel, or Immediate Family of either holds an interest, except under a program open to all Members on the same terms and decided without that person.

11 Criteria

- 11.1 The Business Support Panel shall publish its scoring criteria and their weights before each intake, and shall decide every application in the intake against those criteria.

12 Business Support Panel

- 12.1 Business Support is decided by a Business Support Panel of the Finance Officer and two (2) Electors with business experience, named by the Appeals Panel for terms of two (2) years.
- 12.2 No member of Council may sit on the Business Support Panel. The Councillor holding the Economic Development, Lands and Resources Portfolio may promote the program but has no role in individual decisions.
- 12.3 The Business Support Panel shall decide each complete application in writing within forty-five (45) days.
- 12.4 A decision on Business Support made by Council or by a member of Council is void.

13 Accountability for Business Support

- 13.1 A recipient shall file a one-page report within twelve (12) months after receiving Business Support, stating what was bought and whether the business is operating.
- 13.2 The Finance Officer shall send a reminder thirty (30) days before the report is due. A recipient who has not filed a report is not eligible for further Business Support until it is filed.
- 13.3 Each year, the Finance Officer shall publish the name of each business that received Business Support, the amount, and the purpose.

Part 5

Nation Ventures

14 Separate Books

- 14.1 Each Nation Venture shall keep its own books and bank accounts, separate from those of the First Nation and of every other Nation Venture.
- 14.2 Each Nation Venture shall provide to the Finance and Audit Committee, within thirty (30) days after the end of each quarter, a summary of its revenue, expenses, and result for the quarter, which shall be published. Its annual financial statements are governed by section 20.2 of the Financial Administration Code.
- 14.3 A loss of a Nation Venture shall not be covered by money of the First Nation or of another Nation Venture except by a Resolution under the Financial Administration Code and the Spending and Contracts Code, published within fourteen (14) days. A transfer made without that Resolution is unauthorized and shall be reversed within fourteen (14) days.

15 Boards of Directors

- 15.1 The directors that the First Nation appoints to the board of a First Nation Business Entity shall be appointed by Resolution after a public call for applications posted for at least thirty (30) days.
- 15.2 No more than one (1) member of Council may sit on the board of a First Nation Business Entity, and that member shall not be the Councillor holding the Finance and Audit Portfolio.
- 15.3 A majority of the directors appointed by the First Nation shall have experience in business, finance, law, or the industry in which the entity operates.
- 15.4 Every director appointed by the First Nation is an Official under Part 7 of the Conduct and Conflict of Interest Code.
- 15.5 Fees and benefits paid to a member of Council as a director shall be disclosed and included in the Schedule of Remuneration and Expenses.

16 The First Nation as Owner

- 16.1 Council acts as owner of a First Nation Business Entity only by Resolution, and no member of Council may direct the management or employees of a Nation Venture.
- 16.2 Each year, Council shall publish a statement of expectations for each First Nation Business Entity, setting out its purpose, its financial targets, and the policy for paying its profits to the First Nation.
- 16.3 Creating a new Nation Venture, investing in one, and selling or encumbering an interest in one are subject to the approval of the Electors where section 13.1 of the Financial Administration Code requires it.

17 Hiring and Contracts

- 17.1 A Nation Venture shall hire and contract under rules at least as strict as the Spending and Contracts Code and the Administration and Personnel Code.
- 17.2 A Nation Venture shall not employ or contract with a member of Council, and shall employ or contract with Immediate Family of a member of Council only through an open process in which the member of Council takes no part, with the relationship disclosed in the Contract Registry or the published list of hires.

Part 6

Appeals

18 Appeals

- 18.1 An applicant may appeal a decision on a Member Loan or on Business Support to the Appeals Panel under the Appeals and Complaints Code within thirty (30) days after receiving it.
- 18.2 Until the Appeals Panel is established, an appeal under this section shall be heard by a lawyer, retired judge, or person experienced in adjudication who is not a Member, an employee of the First Nation, or Immediate Family of a member of Council, selected by Council by Resolution, and the members of the Business Support Panel shall be named by that person.

Part 7

Amendment and Coming into Force

19 Amendment

- 19.1 This Code may be amended only with the approval of the Electors in a Ratification Vote, after the full text of the proposed amendment has been published for at least thirty (30) days.
- 19.2 Council may amend this Code by Resolution, without a vote of the Electors, only to lower a limit, add a reporting requirement, or add a control, after thirty (30) days' published notice.
- 19.3 A Resolution that purports to amend this Code contrary to section 19.1 is void.

20 Coming into Force and Transition

- 20.1 This Code comes into force on the date of the Resolution adopting it.
- 20.2 Within fourteen (14) days after this Code comes into force, the Finance Officer shall separate the accounts under section 3.
- 20.3 Loans to Members made before this Code comes into force continue on their written terms. Within sixty (60) days, the Finance Officer shall list every such loan, without names, in the first quarterly report under section 9. No such loan may be forgiven except under section 8.
- 20.4 Council shall put this Code to the Electors for ratification within twelve (12) months after it comes into force.

Adopted by Council

Resolution No. and date

Signature of Chief

Signature of Councillor

Ratified by the Electors

Date of vote and votes for / against / total
Electors on the List

Signature of the Electoral Officer

Explanatory Notes

1. Purpose

This Code keeps three kinds of money apart: personal loans to Members, contributions to businesses owned by Members, and businesses owned by the First Nation. It sets limits, decision makers, reporting, and appeals for each. These notes are not part of the Code.

2. Key provisions

- Member Loans up to \$5,000 outstanding, at two percent a year, for up to 24 months, under a signed agreement. The Finance Officer decides within 30 days (sections 4 to 6).
- No deduction from Treaty Payments. Deductions from program payments only if the loan agreement allows them, and never more than a quarter of a payment (section 7).
- Only the Electors can forgive a loan. A Council forgiveness is void (section 8).
- Business Support up to \$10,000 a year, decided by a panel of the Finance Officer and two Electors named by the Appeals Panel, against published criteria (sections 10 to 12).
- Each First Nation business keeps its own books, reports quarterly, and has a board appointed after a public call, with no more than one member of Council (sections 14, 15).
- Council acts as owner only by Resolution and publishes a yearly statement of expectations for each business (section 16).

3. Legal sources

Source	Provision
Indian Act, s. 89(1)	Real and personal property of an Indian or a band situated on a reserve is not subject to charge, pledge, mortgage, attachment, levy, seizure, distress, or execution in favour or at the instance of any person other than an Indian or a band
Financial Administration Code (Document 09), ss. 13.1, 20	Approval of the Electors for large investments, disposals, and loan forgiveness. Annual statements of First Nation businesses
First Nations Financial Transparency Act, s. 6	Remuneration and expenses paid to the Chief and Councillors by consolidated entities are included in the Schedule of Remuneration and Expenses

4. Records required before adoption

- A list of loans to Members outstanding, with their written terms.
- A list of every First Nation Business Entity, its directors, and its governing documents.